

Daniel J. Sung (SBN 214537)
daniel.j.sung@mailinator.com
Alvarado & Sung LLP
3450 Wilshire Boulevard, Suite 1120
Los Angeles, California 90010
Telephone: (213) 555-0182
Attorneys for Casa Bonita Restaurant Holdings, LLC

LOS ANGELES SUPERIOR COURT - STANLEY MOSK COURTHOUSE

Ellerbee v. Casa Bonita

Case No. 25STCV03285

**COMPLAINT FOR DAMAGES AND
DEMAND FOR JURY TRIAL**

Hon. Priscilla Yee-Barron
Dept. 32

Plaintiff Casa Bonita Restaurant Holdings, LLC alleges as follows:

1. This action arises from insurance defense - premises liability involving Marcus Ellerbee, which occurred on or about August 6, 2024.
2. Venue is proper in this Court under Code of Civil Procedure section 395 because the obligations and injuries alleged occurred in the County of Los Angeles.
3. Defendant Marcus Ellerbee is represented in this matter by Ohanesian & Trent LLP.
4. This action is timely under CCP 335.1 (2 yrs); the limitations period runs through August 6, 2026.

FIRST CAUSE OF ACTION — Premises Liability (Civ. Code 1714)

5. Plaintiff incorporates each preceding paragraph as though fully set forth here. As a direct and proximate result, plaintiff suffered damages in an amount to be proven at trial, exceeding the jurisdictional minimum of this Court.

SECOND CAUSE OF ACTION — General Negligence

6. Plaintiff incorporates each preceding paragraph as though fully set forth here. Plaintiff has been damaged in a sum within the unlimited jurisdiction of this Court, to be established according to proof.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays for general and special damages according to proof, prejudgment interest, costs of suit, and such other relief as the Court deems just.

Dated: February 10, 2025

Alvarado & Sung LLP

By: _____

Daniel J. Sung

Attorneys for Casa Bonita Restaurant Holdings, LLC